

EMPLOYMENT CONTRACT

This Employment Agreement is made on the [XXX of XXXXXXXX, XXXX] by and between:

WAMO LABS, Information Technology business entity enrolled under the laws of **Pakistan**, having its principal office at **Wamo Labs, 91D, D.H.A Commercial Broadway, Lahore, 54000, Punjab, Pakistan** (hereinafter referred to as the "**Employer**"), through its Human Resource / Legal Department, for the execution of business operations.

AND

[Employee Full Name], residing at [House No./Street, Area, City], holding CNIC/ID No. [XXXXXX-XXXXXXX-X] (hereinafter referred to as the "**Employee**") has joined **WAMO LABS** on [Joining Date] as a [Job Title].

Collectively referred to as the "Parties".

I. RECITALS

WHEREAS the Parties are mutually desirous of entering into an employment relationship and, in regard thereto, wish to execute an employment contract governing the terms and conditions of employment.

NOW, THEREFORE, THIS CONTRACT WITNESSES that in consideration of the mutual benefits and promises, conditions, understandings, covenants, agreements, and undertakings hereinafter contained, and intending to be legally bound hereby and for other good and valuable consideration (the receipt and sufficiency of which is hereby acknowledged by the Parties), it is agreed by and between the Parties as follows:

Employee Signature

II. SUBSTANTIVE TERMS

1. Term & Joining

1.1. Term

- 1.1.1 This Contract shall be effective from the date hereinabove given and shall continue for a period of one (1) year and shall stand renewed automatically for further periods of one (1) year each unless: (i) a written notice of non-renewal is given by the Employer to the Employee at least thirty (30) days prior to expiry of the Employment Period or (ii) the Contract is terminated earlier in accordance with the provisions in respect of termination herein contained (hereinafter referred to as the “Employment Period”).

1.2. Joining

The Employee understands and agrees that the Employer will be relying upon the Employee’s legal commitment herein to join the Employer on the Joining Date and that the Employer will be taking steps and incurring expenditures in preparation thereto. Therefore, and notwithstanding anything to the contrary herein contained, if, after signing this Contract, the Employee does not join the Employer on the Joining Date, the same shall be deemed “misconduct” on part of the Employee and the Employer shall have the right to terminate this Contract and the Employee shall pay the equivalent of one (1) month’s salary (the “Payable Amount”) to the Employer within seven (7) days of demand by the Employer. The obligation to pay the Payable Amount to the Employer shall survive termination of this Employment Contract. Without prejudice to the aforesaid, the Employer shall also be entitled to treat such non-joining by the Employee as a resignation without notice, thereby entitling the Employer to any remedies arising as a consequence thereof

2. Duties of Employee

- 2.1 The current duties and responsibilities of which are discussed during the interviews. These duties and responsibilities may be reasonably amended or modified from time to time at the sole discretion of the Employer, subject to notification of the same to the Employee.
- 2.2 Provided that the job title shall not define or limit the work that the Employee may be required to do, and the Employee may be required to do any work within his capacity that the Employer may, from time to time, reasonably require.

3. Probation Period

Both Parties agree to a probation period of ninety (90) days commencing from the Employee’s date of joining. However, based on your performance and the approval of your Team Lead, this period may be reduced to **1.5 months**.

During the probation period:

- Either Party may terminate this Contract without compensation.
- If the Employee wishes to resign, the Employee shall provide at least two (2) weeks’ written notice.
- If the Employee resigns without providing the required notice, the Employer reserves the right to withhold the Employee’s salary for the current month in lieu of such notice.

4. Compensation, Benefits & Entitlements

4.1 Remuneration

- The Employee shall be paid a Monthly Salary (the “Salary”) inclusive of all applicable taxes. The Employer shall comply with all applicable taxes on the Employee’s salary in accordance with the tax laws (Federal, Provincial, or Local) applicable in Lahore, Pakistan, as of the income tax rates announced in the Federal Budget for the particular tax period. However, the Employee shall be responsible for filing all his tax returns with the relevant tax authorities as per law.

Employer’s Right to Set-Off

The Employer shall have the right to deduct, set-off, or adjust any payables due to the Employee by the Employer against any payables due by the Employee to the Employer.

4.2 Reimbursement of Expenses

The Employer shall reimburse the Employee for all reasonable expenses incurred for and on behalf of the Employer for furthering the Employer’s business, including expenses for travelling, lodging and similar items, upon presentation of an appropriate itemized account of expenditures and original receipts or proof of payment within thirty (30) days of incurring such expenses. Provided that the Employee shall, before incurring such expenses, obtain prior written approval from the Employer as may be reasonable and the Employer shall not be liable for reimbursing any expenses incurred by the Employee that are not claimed within thirty (30) days of their incurring.

4.3 Normal Hours of Work, Days of Work, Weekly Holidays & Lunch Break

- 4.3.1 The Employee’s normal hours of work shall be nine (09) hours from 12 p.m. to 9 p.m. from Mondays to Fridays including one (1) hour lunch break or as mutually decided by the both parties.
- 4.3.2 The employer may regulate the working hours in the shift system for some categories of Employee / Second Party according to work requirements and in accordance with the policies and controls issued in this regard.
- 4.3.3 Saturdays and Sundays shall be weekly holidays.
- 4.3.4 Notwithstanding the aforesaid, the Employee may also be required to perform overtime as may be reasonably required by the Employer for the Employee to meet the required deadlines or to complete last moment errands with prior written approval from the Team Lead and the HR department, and the company determines work timing as per company’s policy.

4.4 Sick Leave

- The Employee shall be entitled to eight (8) days sick leave with full pay in each employee year. Provided that in order to claim sick leave for more than one day, the Employee shall furnish the Employer with a valid certificate from a licensed medical practitioner or certifying physician/surgeon certifying that the Employee is required to rest. If the Employee fails to produce such a valid medical certificate, the Employer shall be entitled to treat any such sick leave as annual leave or leave without pay.
- During probation only 2 sick leaves are allowed with the prior approval.

4.5 Leave & Absence Without Leave

If, in addition to the Employee’s leave entitlement above, the Employee requires additional leave for good reason(s) as per company policy, the Employee may apply to the Employer in writing for such leave and the Employer may, at its sole discretion, authorize such leave, which may or may not be paid leave. In case such leave is unpaid, the Employer shall be entitled to make suitable deductions from the Employee’s monthly salary.

4.6 Place of Work

4.6.1 The Employee's principal place of employment shall be at the Employer's place of business situated in Lahore, Pakistan.

4.6.2 Work on site at the premises of a client or customer of the Employer, in which case he shall act professionally and responsibly and shall not steal or damage the property of such client or customer and if he does so, he shall be personally liable for the same.

5. Employee's Obligations & Responsibilities

5.1 The Employee agrees to faithfully, diligently, and professionally perform all duties assigned by the Employer and to comply with the responsibilities associated with their designated role, as defined by the Employer from time to time.

5.2 The Employee shall:

5.2.1 Perform their duties personally, with due skill, care, diligence, honesty, and integrity, and shall at all times act in the best interests of the Employer.

5.2.2 Comply with all lawful and reasonable instructions, policies, procedures, rules, circulars, and directives issued by the Employer, including any applicable regulatory or legal requirements in force within the constitution of Pakistan.

5.2.3 Devote the full extent of their time, attention, abilities, and effort during working hours exclusively to the business of the Employer.

5.2.4 Not engage, directly or indirectly, in any other employment, business, or activity, whether for compensation or otherwise, without the prior written consent of the Employer.

5.2.5 Attend any mandatory training, courses, or professional development activities arranged by the Employer to enhance skills or maintain competency as required by the Employer.

5.2.6 Use all Company property, including devices, machines, software, and tools, strictly for authorized business purposes. The Employer reserves the right to access or retrieve any data stored on such property at any time and without prior notice.

5.2.7 Not steal, misuse, misappropriate, damage, or otherwise compromise any property, physical or intellectual, belonging to the Employer.

5.2.8 Promptly notify the Employer of any change in personal information relevant to employment, including but not limited to name, address, contact number, or marital status.

5.3 Confidentiality and Intellectual Property

5.3.1. The Employee shall not, during the term of employment or for a period of **two (2) years** following termination (for any reason), disclose, share, or use for personal or third-party benefit any confidential or proprietary information obtained during the course of employment.

5.3.2. The Employee acknowledges and agrees that all inventions, ideas, designs, works of authorship, software, processes, and other intellectual property created individually or jointly with the Employer within the scope of employment shall be the sole property of the Employer, regardless of whether protected under applicable intellectual property laws.

5.3.3. The Employee irrevocably waives any rights to such intellectual property and agrees to execute any documentation required to formally assign such rights to the Employer, both during and after employment.

5.4 Return of Company Property and Data

Upon termination of employment, or upon the Employer's written request, the Employee shall:

5.4.1 Immediately return all documents, equipment, files, records, access credentials, and other property belonging to the Employer;

5.4.2 Remove all Employer data or files from personal devices and confirm deletion where applicable.

5.4.3 The Employee shall return all company property, including documents, equipment, and access credentials, without delay. The company has the legal right to file suits under Order XXXVII Rule 2, CPC for recovery of laptops, gadgets, company property in any form, materialistic, non-materialistic, advances, assistance, money, borrowed money and any other money taken from the company. The content of this contract will also be considered as a promissory note as defined under section 4 of the Act 1881, which reads as follows: -

"Promissory note." A "promissory note" is an instrument in writing (not being a bank-note or a currency note) containing an unconditional undertaking, signed by the maker, to pay [on demand or at a fixed or determinable future time] a certain sum of money only to, or to the order of, a certain person, or the bearer of the instrument.

5.4.4 The company has legal recourse for protection of its legal and fundamental rights guaranteed under contract act 1872 law that if an employee acts unlawfully/illegally/wrongfully, e.g. caused injury, defames, breaches contract, destroyed property shall legally willing to compensate the losses. If company suffered loss/injury/humiliation/financial damages from employee than it's legally bound to pay/compensate the losses suffered. The employer allowed through honorable court is attracted as the cause of action arose within the territorial jurisdiction for recovery of suffer losses.

5.1 Conflict of Interest and Non-Compete Conduct

The Employee shall ensure they remain free of any actual or perceived conflicts of interest during their employment. The Employee shall not:

- 5.1.1 Use, exploit, or otherwise benefit from any Company contacts, clients, or business relationships for personal gain;
- 5.1.2 Engage in any non-professional relationship with any client, employee, or management personnel that may influence their conduct or judgment in relation to the Employer's business.

5.2 Disciplinary Consequences

Violation of any obligation under this clause may result in disciplinary action, including but not limited to, warnings, suspension, financial penalties, or termination of employment, in accordance with the Employer's disciplinary policy.

6. Limitation of Authority

Notwithstanding other terms herein, the Employee shall not have the right, power or authority to enter into any contract, agreement or undertaking, written or oral, or enter into any kind of commitment for or on behalf of the Employer, or to act as or be an agent or representative of, or to otherwise bind, the Employer, without first obtaining the express written consent and authorization of the Employer.

7. Termination of Employment

7.1. Termination

The Employer may terminate the Employee's employment, with or without cause:

- 7.1.1 By giving the Employee at least thirty (30) days' written notice; or
- 7.1.2 Immediately by giving the Employee thirty (30) days' salary in lieu of notice.
- 7.2. In the event that the Employee's employment is terminated, he shall be paid his salary up to the effective date of termination.
- 7.3. Notwithstanding anything to the contrary contained in this Contract, the Employer may terminate the Employee's employment immediately without giving the Employee one (1) months' notice or one (1) month's salary in lieu of notice if the Employee engages in any misconduct.
- 7.4. The Employer ("First Party") reserves the right to terminate this Contract by providing the Employee ("Second Party") with **thirty (30) days' prior written notice**, or payment in lieu thereof, under any of the following circumstances:

- 7.4.1. The Employee receives the lowest possible rating or its equivalent in the Company's performance management evaluation for **two (2) evaluation cycles within a twelve (12)-month period**, beginning from the date of joining.
- 7.4.2. The Employee reaches the statutory retirement age of **sixty (60) years**, unless both parties mutually agree in writing to continue the employment beyond such age.
- 7.4.3. The occurrence of a **force majeure event**, which renders the continuation of the employment relationship impossible or impractical, including but not limited to natural disasters, war, government action, or other events beyond the control of either party.
- 7.4.4. The **permanent closure** or dissolution of the Company.
- 7.4.5. The **elimination or cancellation** of the business unit, department, or function in which the Employee is employed, resulting in redundancy.

For the purpose of this sub-clause, the term "misconduct" shall include, without limitation, breach of confidentiality and non-disclosure obligations, insubordination, wilful neglect, dereliction of duty, part-time or full-time employment with a third party, moonlighting, tardiness, leaving early, absenteeism, going absent without leave for more than three (3) consecutive working days, job abandonment, non-joining after signing this Contract, non-completion of notice period after termination or resignation, professional incompetence, misdemeanour, breach of trust, violating zero tolerance policy, misappropriating, embezzling, damaging, or destroying the Employer's property or revenues, fraud, forgery, paying, receiving, or demanding any bribe or unauthorized commission, violence or harm or threat of violence or harm, harassment (including sexual harassment), blackmailing, making defamatory statements, disparaging, or negative remarks about the Employer and its owners, shareholders, directors, and senior management, and any act or omission considered to be a criminal act under the Pakistan Penal Code, 1860 or any reenactment thereof, and entering into or remaining in any non-professional relationship (including that of a romantic, physical, or sexual nature) with any other employee, client, customer, or management personnel of the Employer.

8. Resignation

8.1 The Employee may resign from his employment by giving the Employer:

8.1.1 At least thirty (30) days' written notice; or

8.1.2 The equivalent of thirty (30) days' salary in lieu of notices.

8.2 If the Employee resigns without giving the Employer at least thirty (30) days' notice or the equivalent of thirty (30) days' salary in lieu of notice, the Employer shall have the right to (i) deduct the equivalent of thirty (30) days' salary from the final disbursement/settlement owed to the Employee; or (ii) seek recovery of the same from the Employee. The specific remedies provided in this Clause shall be without prejudice to the Employer's right to seek any other remedy or relief against the Employee for breach of this Contract and /or under the law.

8.3 Notwithstanding anything to the contrary contained in this Contract, upon termination or resignation, the Employee shall:

8.3.1 forthwith return to the Employer or delete or destroy, as required by the Employer, any tangible manifestation of the Employer's confidential information and all documents, records, materials, and property containing such confidential information in any form, whether electronic or paper, software or hardware, and all other materials and all copies thereof relating in any way to the Employer's Confidential Information, business, or in any way given to or obtained by the Employee during the course of the Employment. The Employee shall not retain copies, notes, or abstracts of the foregoing in any format whatsoever;

8.3.2 forthwith return to the Employer all materials or property given to him by the Employer or obtained by the Employee from the Employer during the Employment Period, including, but not limited to, any keys, security passes, access cards, employer identity cards, business cards, equipment, laptops, computers, discs, USBs, software, printed material, books, manuals, reports, letters, stationery, diagrams, plans,

intellectual property) and all copies of that material, which are in the Employee's possession or under his control;

8.3.3 as and when required by the Employer, appear in person before the Employer's relevant department/officer to hand over the Employer's Property and have the relevant clearance document(s) signed by the relevant department head/officer; and

8.3.4 as and when required by the Employer, sign/execute any clearance affidavit, undertaking, and/or any other employment termination document on the format prescribed by the Employer

9. Post-Employment Obligations

The Employee shall not, subsequent to his termination:

9.1.1. use the Employer's name in any manner whatsoever;

9.1.2. represent himself as an employee, agent, or representative of the Employer;

9.1.3. represent himself to be associated with the Employer in any manner whatsoever;

9.1.4. take any action which directly or indirectly negatively affects the reputation of the Employer; use any property of the Employer, including any intellectual property; and

9.1.5. breach his non-compete, non-solicitation, confidentiality, and non-disclosure obligations towards the Employer.

9.1.6. This Clause shall survive termination of this Contract.

9.1.7. The company has legal-abiding for protection of his legal and fundamental rights guaranteed under defamation Ordinance 2002 if employee will engage any kind of activity fall under the ambit of defamation Ordinance shall pay compensation money for suffered losses.

10. Confidentiality, Non-Disclosure & Secrecy

The Employee acknowledges that, in the course of performing and fulfilling his duties hereunder, he may have access to and be entrusted with confidential information and trade secrets concerning the present and contemplated financial status, technology, methods, intellectual property and business activities of the Employer, the disclosure of any of which to competitors of the Employer or to third parties would be highly detrimental to the interests of the Employer. The Employee acknowledges and agrees that the right to maintain the confidentiality of such information constitutes a proprietary right which the Employer is entitled to protect. Accordingly, the Employee covenants and agrees with the Employer that he shall not, during the continuance of this Contract and afterwards:

10.1.1. directly or indirectly, disclose or divulge any of such confidential information or trade secrets to any person, firm or corporation, nor shall he use the same, except as required in the normal course of his engagement hereunder, and thereafter he shall not disclose or make use of the same;

10.1.2. make or possess, without authority, copies of any documents or media on which any such information is recorded or saved and, upon termination of this Contract, the Employee shall return to the Employer (without keeping any copies) any such documents or other media. This obligation includes, but is not limited to, all files, tapes, discs, documents, data, customer database, printed material, drafts, drawings and copies of such items, whether in softcopy, printed form or otherwise; and

10.1.3. make use of or compile, either for his own benefit or for the benefit of any third party, the Confidential Information or any information whatsoever relating to the conduct of the business of the Employer and the Employer's customers.

11. Remedies for Breach of Contract by Employee

The Employee agrees that irreparable harm shall be presumed upon his breach of any term of this Contract and if the Employee breaches any term of this Contract, the Employer shall be entitled to all or any of the following remedies: -

11.1.1. immediate termination of the Employment Contract without notices and without payment of any compensation in lieu of notice; and/or specific performance of this Contract in the Civil Courts at Lahore, Pakistan; and/or any injunctive or other equitable relief, including

issuance of a temporary restraining order, preliminary injunction and/or permanent injunction; and/or

- 11.1.2. liquidated damages from the Employee amounting to Rs. 5,000,000/- (Rupees Five Million) or equivalent to the Employee's one (1) year's salary last drawn, whichever is greater (without prejudice to the Employer's additional right to claim damages under sub-clause 17.1.5 below); and/or
- 11.1.3. Notwithstanding the above or anything to the contrary in this Contract, nothing shall prevent the Employer, either during or after Employment, from:
- 11.1.4. pursuing any remedy or remedies available to the Employer under the law against the Employee for any breach by the Employee of his contractual or legal obligations towards the Employer;
- 11.1.5. taking any criminal action against the Employee for any criminal offence or criminal breach of trust committed by the Employee in relation to the Employer and/or the Employer's property, including, without limitation, the Employer's intellectual property, business secrets, confidential and proprietary information and documents; and
- 11.1.6. pursuing both civil and criminal remedies against the Employee simultaneously.
- 11.1.7. The Employee acknowledges and agrees that, in the event of any breach or threatened breach by the Employee of any of the terms of this Contract, monetary damages alone would not be a sufficient remedy for any breach of this Contract by the Employee and the Employer would not have an adequate remedy at law and would be irreparably harmed in the event that any of the provisions of this Contract were not performed in accordance with their specific terms or were otherwise breached. Accordingly, in addition to any financial settlement and all other legal remedies which may be available or availed by the Employer, the Employee agrees that the Employer shall be entitled to seek: specific performance, injunctive or other equitable relief, including issuance of a temporary restraining order, preliminary injunction and/or permanent injunction by any court of competent jurisdiction, or criminal proceedings, against the Employee as may be necessary to protect the Employer against any such breach or threatened breach and to prevent breaches of this Contract and to specifically enforce the terms and provisions hereof, in addition to any other remedy to which the Employer may be entitled, at law or in equity.
- 11.1.8. In the event that the Employee develops a product or service (the "Product/Service") using the Confidential Information in breach of his obligations under this Contract, then, in addition, to other remedies available to the Employer under this Contract and/or the law, all rights in the Product/Service, including, without limitation rights of ownership and title, shall vest in the Employer.
- 11.1.9. No specification in this Contract of any particular remedy shall be construed as a waiver or prohibition of any other remedies available to the Employer in the event of a breach or threatened breach of this Contract by the Employee.

12. Governing Law & Jurisdiction

- 12.1.1. This Contract shall be governed, interpreted, and construed solely in accordance with the applicable laws (for the time being in force) in the Punjab Province of Pakistan.
- 12.1.2. In the event of any dispute(s) between the Parties arising from, in connection with, or under this Contract, the court(s) of competent jurisdiction (civil and/or criminal, as the case may be) at Lahore, Pakistan shall have exclusive jurisdiction to adjudicate upon such dispute(s).

13. Force Majeure

- 13.1.1. Neither Party shall be liable to the other for any loss or damage whatsoever arising from its failure to perform or delay in performing any of its obligations in this Contract when such failure or delay is by reason of force majeure, that is, circumstances beyond the reasonable control of such Party. Explanation: For the purposes of this Clause, "force majeure" means and includes accident, bad weather, power failure, strike, lockout, riot, protest, delay by a third party, unforeseen problems with transport, blockade, civil strife and commotion, fire, natural disaster, flood, earthquake, explosion, epidemic, insurrection, war or warlike conditions, terrorism or threat of terrorism, embargo, act of God, actions of governments

or governmental agencies, compliance with any law, regulation or other governmental order, whether or not valid, or other similar causes beyond the control of the Party effected.

13.1.2. The Party claiming to be so affected shall give notice to the other Party promptly after it learns of the occurrence of a force majeure event and of the adverse results thereof.

13.1.3. Such notice shall set forth the nature and extent of the event. The delay or failure mentioned in Clause 27.1 shall not be excused unless such notice is so given.

13.2. Such failure or delay shall not constitute a breach of this Contract and the time for performance shall be extended by a period equivalent to that during which performance is so prevented by reason of such failure or delay.

13.3. Notwithstanding any other provision of this Contract, either Party may terminate this Contract if the other Party is unable to perform any or all its obligations hereunder for a period of six (6) months by reason of such force majeure event as if the date of termination were the date set forth herein as the expiration date hereof.

14. No Liability

Notwithstanding anything to the contrary in this Contract or otherwise, the Employer shall not be responsible or liable for any direct or indirect, incidental, or consequential, special or punitive damages, injuries, or losses suffered by the Employee either to his person, property, or reputation or in connection with or arising out of this Contract or the Employment, the services rendered hereunder, or the termination thereof.

15. Modifications

No amendments, additions, changes, modifications, alterations, or waivers in respect of this Contract or additional obligation assumed by either Party in connection with this Contract shall be effective, valid or binding on the Parties unless evidenced in writing and signed by each of the Parties or on behalf the Parties by their duly authorized representatives.

16. Notices

All communications between the Parties, except for any notice of termination, required to be given under this Contract or given in connection with it by either Party, shall be in writing and communicated/delivered in either of the following manner and form the respective contact details of the Parties provided.

- a) via e-mail
- b) via courier or registered mail

16.1 Any notice of termination required to be served under this Contract or given in connection with it by either Party, shall be in writing and signed by the Party giving such notice and delivered at the respective address of the concerned Party as provided.

16.2 Either Party may change its contact details for notices at any time, by giving notice, in writing, to the other Party pursuant to the provisions of this Contract.

VI. Rules of Construction & Interpretation

17. Construction

This Contract shall be construed without regard to any presumption or other rule requiring construction against the Party causing this Contract to be drafted. If, for any reason, any words or phrases in this Contract are stricken out or otherwise eliminated, or whether any other words or phrases are added, this Contract shall be construed as if those words or phrases were never included in this Contract, and no implication or inference shall be drawn from the fact that the words or phrases were so stricken out or otherwise eliminated.

18. Implied Terms

For the avoidance of doubt, all express terms contained herein shall prevail over any terms implied by law.

19. Reference to Parties

References herein to any “Clause”, “Party” or “Parties” shall be construed as references to clauses (and their sub-clauses) and Parties herein.

20. Signatures/Stamps on Each Page

The Parties shall respectively affix their signatures/stamps, as applicable, on each page of this Agreement.

IN WITNESS WHEREOF the Parties hereto have signed and executed this Contract at the place and date hereinabove mentioned.

Authorized Signatory
HR / Legal Department
M/S WAMO LABS

Employee Name:
CNIC.....